

16. S-CV-0054631 Ptak, Crystal v. Thomas, Kira Elena

Counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Be Relieved as Counsel

Counsel Leah Kestrel Finke's unopposed motion to be relieved as counsel for plaintiffs Crystal Ptak and Oliver Jouin is denied without prejudice. Counsel submitted a notice of motion, an attached memorandum of points and authorities, a declaration of counsel in support thereof, and a proposed order. However, these documents were not on Judicial Council forms MC-051, MC-052, and MC-053, which are mandatory Judicial Council forms.

17. S-CV-0055435 Jacobs, Adam v. Ameen, Niran

Motion to Compel

Plaintiff moves to compel defendant Anwar Ameen to serve verified, complete, and Code-compliant responses to plaintiff's requests for production of documents, set one, numbers 1 through 8. (Code Civ. Proc., § 2031.300.) Plaintiff also requests monetary sanctions of \$1,060. Defendant opposes the motion and presents evidence that defendant served verified amended responses on March 18, 2026 and verified second amended responses on March 31, 2026. Both of these supplemental responses were after the motion was filed but before defendant's time to oppose the motion had passed. Plaintiff acknowledges receipt of both sets of verified responses in his reply. Accordingly, the motion to compel responses is denied as moot. Plaintiff's request for monetary sanctions is likewise denied.

Motion for Sanctions

Plaintiff moves for an order imposing sanctions under Code of Civil Procedure section 128.7 and 128.5 against defendant Anwar Ameen and defense counsel Owais M. Bari, arguing that defendant's opposition to the motion to strike answer and supporting documents filed February 256, 2026 was for an improper purpose. Defendants oppose the motion.

Code of Civil Procedure section 128.5(a) allows the court to order a party, the party's attorney, or both to pay reasonable expenses, including attorney's fees, incurred as a result of bad faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. "Actions or tactics" include the making or opposing of motions. (Code Civ. Proc., § 128.5, subd. (b)(1).) "Frivolous" is defined as "totally and completely without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc. § 128.5, subd. (b)(2).) Sanctions under Code of Civil Procedure section 128.5 require compliance with the Safe Harbor Provision, which provides a motion for sanctions "shall not be filed with or presented to the court, unless 21 days after the service of the motion

... , the challenged action or tactic is not withdrawn or appropriately corrected.” (Code Civ. Proc., § 128.5, subd. (f)(1)(B).)

When an attorney or unrepresented party submits to the court a motion or other document, they certify to the court (1) the document is not presented primarily for an improper purposes, (2) the contentions therein are warranted by existing law, (3) the factual contentions have or are likely to have evidentiary support, and (4) the denials of factual contentions are warranted on the evidence or reasonably based on a lack of information or belief. (Code Civ. Proc., § 128.7, subd. (b).) “If, after notice and a reasonable opportunity to respond, the court determines that [one of the above four bases] has been violated, the court may[] . . . impose an appropriate sanction upon the attorneys, law firms, or parties . . . responsible for the violation.” (*Id.* subd. (c).) Sanctions under Code of Civil Procedure section 128.7 require compliance with the Safe Harbor Provision, which provides a motion for sanctions “shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.” (Code Civ. Proc., § 128.7, subd. (c)(1).)

Here, while plaintiff states that the motion was served on defendants on April 8, 2026, plaintiff presents no evidence he served the motion on April 8, 2026. Accordingly, there is insufficient evidence of compliance with the safe harbor provisions outlined in Code of Civil Procedure sections 128.5(f)(1)(B) and 128.7(c)(1). Due to this procedural deficiency, the motion is denied.

Even if plaintiff had shown compliance with the safe harbor provisions, the motion would still be denied. It cannot be said that the opposition to the motion to strike filed February 25, 2026 is totally and completely without merit or evidentiary support or was filed for the sole purpose of harassing an opposing party or another improper purpose.

Based on the foregoing, the motion is denied.

Motion to Consolidate

The motion to consolidate is dropped from calendar as no moving papers were filed with the court.

18. S-CV-0055656 Alizadeh, Kobra v. Barrett Daffin Frappier Treder & Weiss

Moving Party is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant Wells Fargo, N.A.’s Motion for Judgment on the Pleadings

Defendant Wells Fargo, N.A.’s request for judicial notice is granted.